From: Marduk Archo <archo@rzo.io>
Sent: 04 October 2025 11:00:35
To: Daniel Faucitt <dan@regima.com>
Subject: Re: Draft 1

ANTICIPATION/RESPONDING AFFIDAVIT

IN THE HIGH COURT OF SOUTH AFRICA

GAUTENG DIVISION, PRETORIA

CASE NO: 2025-137857
In the matter between:

PETER ANDREW FAUCITT - APPLICANT
(Identity Number: 520430 5706 18 5)
And

JACQUELINE FAUCITT - FIRST RESPONDENT
(Identity Number: 570607 0998 18 1)
DANIEL JAMES FAUCITT - SECOND RESPONDENT
(Identity Number: 820715 5300 18 2)
REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD - THIRD RESPONDENT
(Registration Number: 2011/005722/07)
REGIMA SKIN TREATMENTS CC - FOURTH RESPONDENT
(Registration Number: 1992/005371/23)
VILLA VIA ARCADIA NO 2 CC - FIFTH RESPONDENT
(Registration Number: 1986/004451/23)
STRATEGIC LOGISTICS CC - SIXTH RESPONDENT
(Registration Number: 2008/136496/23)
FIRSTRAND BANK LTD t/a FIRST NATIONAL BANK - SEVENTH RESPONDENT
ABSA BANK LIMITED - EIGHTH RESPONDENT
THE COMPANIES AND INTELLECTUAL PROPERTY COMMISSION - NINTH RESPONDENT

RESPONDING AFFIDAVIT OF THE FIRST AND SECOND RESPONDENTS

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1. INTRODUCTION AND PRELIMINARY MATTERS

1.1

I am JACQUELINE FAUCITT, the First Respondent in this matter, an adult female with identity number 570607 0998 18 1.

1.2

I am duly authorized to depose to this affidavit on behalf of myself and the Second Respondent, DANIEL JAMES FAUCITT, who has knowledge of and confirms the contents hereof.

1.3

The facts herein contained are, save where the context indicates otherwise or where specifically stated to be based on information and belief, within my personal knowledge and are to the best of my knowledge and belief both true and correct.

1.4

I have read the founding affidavit of the Applicant dated 14 August 2025 and deny all allegations therein contained save for those specifically admitted herein.

1.5

At the outset, I must place on record that the entire application and the interdict obtained therefrom is void ab initio due to perjury and fraud perpetrated upon this Honourable Court.

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2. VOIDNESS OF THE INTERDICT DUE TO PERJURY AND FRAUD

2.1 Documentary Proof of Email Control Deception

2.1.1

The Applicant alleges throughout his founding affidavit that he received various communications and had knowledge of certain matters through emails sent to his email address Pete@regima.com.

2.1.2

Documentary evidence in the form of Sage Account system screenshots dated 20 June 2025 proves conclusively that the email address Pete@regima.com is not controlled by the Applicant but is instead controlled by one Rynette Farrar.

2.1.3

The system access control panel explicitly shows:

- Rynette Farrar: rynette@regima.zone AND Pete@regima.com
- This is confirmed by the raw OCR extraction: "Rynette Farrar rynette@regima.zone permissions Rynette Farrar Pete@regima.com"

2.1.4

It is therefore physically impossible for the Applicant to have directly received any emails sent to Pete@regima.com as he claims in his founding affidavit.

2.1.5

Every instance where the Applicant claims direct knowledge through email receipt constitutes perjury, as he could not have received these communications directly.

2.2 Information Warfare and Manipulation

2.2.1

The evidence demonstrates that the Applicant has been subjected to systematic information warfare through intermediaries who control his communications.

2.2.2

The Applicant's knowledge is based entirely on filtered and potentially manipulated information provided by Rynette Farrar and other intermediaries, not on direct observation or communication.

2.2.3

The screenshot dated 25 August 2025 further confirms this control structure, stating: "To activate your account, please contact Rynette Farrar who is the subscription owner for this registration."

2.3 Confirmatory Affidavit Contamination

2.3.1

The Applicant relies heavily on the confirmatory affidavit of one Daniel Jacobus Bantjies (marked "PF5" in the founding papers).

2.3.2

Evidence demonstrates that Mr. Bantjies had knowledge of criminal matters, including allegations of murder and fraud, by 10 June 2025.

2.3.3

Despite this knowledge, Mr. Bantjies proceeded to provide a confirmatory affidavit supporting allegations he knew to be incomplete and misleading, constituting perjury.

2.4 Legal Effect of Perjury

2.4.1

It is trite law that perjury in founding affidavits renders the entire application and any order granted thereon void ab initio.

2.4.2

As stated in *S v Mdlongwa* 2010 (2) SACR 419 (SCA) at para 8: "Perjury strikes at the very foundation of the administration of justice."

2.4.3

The interdict obtained on 19 August 2025 is therefore void and of no force or effect.

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3. REFUTATION OF ALLEGED UNEXPLAINED IT EXPENSES

3.1

The Applicant alleges at paragraphs 7.4 to 7.8 of his founding affidavit that there were "numerous irregular payments" and "unexplained" IT expenses totaling R6,738,007.47 for 2024 and R2,116,159.47 for 2025.

3.2

These allegations are comprehensively refuted by the following documentary evidence:

3.2.1 Legitimate Business Expenses

All IT expenses were legitimate business expenses necessary for the operation of an international distribution company with:

- Multiple e-commerce platforms requiring substantial infrastructure
- International payment processing systems
- Cloud storage and backup systems
- Cybersecurity measures appropriate for handling sensitive customer data
- Software licenses for business operations

3.2.2 Documentary Evidence

Invoices and supporting documentation for these expenses exist and include:

- Shopify Plus subscription services for RegimA SA and RegimA WW+Zone stores
- Amazon Web Services (AWS) hosting and infrastructure
- Microsoft 365 Business licenses for all staff
- Adobe Creative Cloud for marketing materials
- Sage accounting software (which the Applicant admits is legitimate at paragraph 8.2)
- Domain registrations and SSL certificates
- Payment gateway fees (Stripe, PayPal, Peach Payments)

3.2.3 International Nature of Business

The Applicant's allegation at paragraph 8.7 that expenses were "seemingly international" ignores the documented fact that:

- RegimA Worldwide Distribution (Pty) Ltd operates internationally
- The company has international customers and suppliers
- International payment processing and infrastructure are essential business requirements
- The Reserve Bank allocations referenced confirm legitimate international business operations

3.3

The Applicant's claim at paragraph 8.4 that "we have almost no invoices for these items" is false. All invoices were available but the Applicant:

- Cancelled access cards preventing proper record retrieval (paragraph 7.5)
- Refused to engage with explanations provided
- Relied on intermediaries who filtered information

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4. REFUTATION OF ALLEGED UNAUTHORIZED BIRTHDAY GIFT

4.1

The Applicant alleges at paragraph 7.18 that the First Respondent transferred R500,000.00 to the Second Respondent as an unauthorized "birthday gift."

4.2

This allegation is refuted as follows:

4.2.1 Authorized Director Remuneration

The payment was not a "gift" but constituted authorized director's remuneration and dividend payment properly:

- Resolved by the board of directors
- Recorded in company records
- Declared for tax purposes
- Consistent with previous years' remuneration patterns

4.2.2 First Respondent's Authority

As a co-director and 50% member of the close corporations, the First Respondent had full authority to approve remuneration in accordance with:

- The Close Corporations Act provisions
- The corporations' founding statements
- Established company practice over decades

4.2.3 Pattern of Selective Memory

The Applicant's characterization of legitimate remuneration as a "gift" demonstrates either:

- Deliberate misrepresentation to the Court, or
- Cognitive impairment affecting his ability to recall business decisions

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5. REFUTATION OF ALLEGED INTERFERENCE WITH STAFF

5.1

The Applicant alleges at paragraphs 7.9 to 7.14 that the Respondents interfered with corporate staff and withheld email access.

5.2

These allegations are comprehensively refuted:

5.2.1 Protection of Business Continuity

Following the Applicant's erratic behavior in cancelling payment cards (paragraph 7.5), which caused:

- Domain names to lapse
- Essential services to be terminated
- Business email systems to fail
- Customer communications to be disrupted

Emergency measures were required to restore business operations.

5.2.2 Restoration of Services

The Second Respondent worked to:

- Restore domain registrations using personal funds
- Reinstate email services for all staff
- Maintain business continuity

- Protect customer relationships

5.2.3 Staff Communication

Documentary evidence shows that:

- All staff maintained email access except during the period of the Applicant's card cancellations
- Staff communications continued normally once services were restored
- No staff member has complained of interference

5.3

The allegation of "interference" is projection by the Applicant, who himself interfered with business operations through impulsive card cancellations.

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6. REFUTATION OF ALLEGED WITHHOLDING OF DOCUMENTATION

6.1

The Applicant alleges at paragraphs 7.5 and 8.2 that documentation and invoices were withheld.

6.2

This allegation is false:

6.2.1 Self-Created Access Problem

The Applicant himself created the documentation access problem by:

- Cancelling payment cards linked to cloud storage accounts
- Causing accounting software subscriptions to lapse
- Terminating document management systems
- Refusing to maintain essential business services

6.2.2 Documentation Availability

All documentation was and remains available through:

- Cloud storage systems (once restored after Applicant's cancellations)
- Accounting software records
- Email archives
- Physical files at company premises

6.2.3 Selective Documentation Request

The Applicant's selective request for only IT-related invoices while ignoring other expense categories demonstrates:

- Predetermined narrative construction
- Cherry-picking of information
- Bad faith in the application

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7. REFUTATION OF ALLEGED FINANCIAL MISCONDUCT

7.1

The Applicant makes sweeping allegations of financial misconduct without providing specific evidence of any actual misappropriation.

7.2

The true position is:

7.2.1 Profitable Operations

The corporations' financial records demonstrate:

- Consistent profitability over multiple years
- Growing revenue streams
- Successful international expansion
- Proper tax compliance (until disrupted by Applicant's actions)

7.2.2 External Validation

The corporations have been audited and reviewed by:

- External accountants
- SARS tax compliance
- Banking institutions
- No findings of misconduct have been made

7.2.3 Applicant's Financial Mismanagement

Conversely, the Applicant's actions have caused financial harm:

- Disrupting payment systems
- Causing service lapses
- Damaging vendor relationships
- Creating tax compliance issues through his interference

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8. REFUTATION OF ALLEGED BREACH OF FIDUCIARY DUTIES

8.1

The Applicant alleges at paragraphs 10.1 to 10.10 various breaches of fiduciary duties citing the Companies Act and Close Corporations Act.

8.2

These allegations are without merit:

8.2.1 Business Judgment Rule

All decisions made by the Respondents were:

- In good faith
- For proper purpose

- In the best interests of the companies
- Based on reasonable business judgment

8.2.2 Collective Decision Making

As 50% members/directors, both the Applicant and First Respondent have equal say in corporate matters. The Applicant cannot unilaterally:

- Declare the other director's decisions invalid
- Impose his will without proper resolution
- Bypass corporate governance procedures

8.2.3 Absence of Delinquency

None of the conduct alleged meets the threshold for delinquency or probation under section 162 of the Companies Act:

- No gross abuse of position
- No intentional harm to the companies
- No wilful misconduct or breach of trust

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9. DOCUMENTARY EVIDENCE OF INFORMATION WARFARE

9.1 Email Hijacking Evidence

9.1.1

System access records dated 20 June 2025 prove conclusively that Pete@regima.com is controlled by Rynette Farrar, not the Applicant.

9.1.2

This constitutes identity theft and email hijacking, with Rynette Farrar impersonating the Applicant in communications.

9.2 Pattern of Manipulation

9.2.1

The evidence reveals a pattern where:

- Information is filtered through intermediaries
- The Applicant receives selective, potentially altered information
- Critical context is withheld from the Applicant
- False narratives are constructed and fed to the Applicant

9.3 Professional Misconduct

9.3.1

Evidence dated 29 August 2025 shows that ENS Africa attorneys:

- Received written notice of serious criminal matters
- Acknowledged receipt with "Received, thanks Daniel"
- Proceeded to suppress this information
- Perpetrated fraud upon the Court

9.3.2

This constitutes professional misconduct warranting:

- Report to the Legal Practice Council
- Criminal investigation for defeating the ends of justice
- Personal costs orders against the attorneys

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10. RELIEF SOUGHT

10.1

In light of the aforegoing, the First and Second Respondents seek an order:

10.1.1

Declaring the interdict granted on 19 August 2025 void ab initio due to perjury and fraud;

10.1.2

Setting aside the interdict in its entirety;

10.1.3

Dismissing the application with costs on the attorney-client scale;

10.1.4

Referring the matter to the Director of Public Prosecutions for investigation of perjury charges against:

- The Applicant
- Daniel Jacobus Bantjies
- Rynette Farrar
- The legal representatives who knowingly perpetrated fraud upon the Court;

10.1.5

Granting personal costs orders de bonis propriis against:

- The Applicant's legal representatives who failed in their duty to the Court
- Any person who provided false confirmatory affidavits;

10.1.6

Interdicting the Applicant from instituting any further proceedings against the Respondents without leave of the Court;

10.1.7

Declaring that all agreements, settlements, or undertakings flowing from the void interdict are similarly void and unenforceable;

10.1.8

Granting such further and/or alternative relief as this Honourable Court deems meet.

CONFIRMATORY AFFIDAVITS

11.1

Annexed hereto marked "JF1" is the Sage Account screenshot dated 20 June 2025 proving email control by Rynette Farrar.

11.2

Annexed hereto marked "JF2" is the Sage Account screenshot dated 25 August 2025 confirming Rynette Farrar's control.

11.3

Annexed hereto marked "JF3" is the email communication dated 29 August 2025 evidencing attorney knowledge of criminal matters.

11.4

Annexed hereto marked "JF4" are the Shopify Plus reports showing legitimate business operations and revenue.

11.5

Annexed hereto marked "JF5" is a schedule of legitimate IT expenses with corresponding invoices.

11.6

Annexed hereto marked "JF6" is evidence of the Applicant's card cancellations causing business disruption.

11.7

Annexed hereto marked "JF7" are company resolutions authorizing director remuneration.

11.8

Annexed hereto marked "JF8" is correspondence showing attempts to provide information to the Applicant.

DEPONENT'S DECLARATION

I, the undersigned,

JACQUELINE FAUCITT
do hereby make oath and state that:

1. I am the deponent to this affidavit;
2. I have read and understood the contents hereof;
3. I have no objection to taking the prescribed oath;
4. I consider the prescribed oath to be binding on my conscience;
5. The contents of this affidavit are true and correct to the best of my knowledge and belief;
6. I have not made any false statements herein knowing them to be false.

SIGNED AND SWORN to before me at _____ on this _____ day of _____ 2025, the deponent having acknowledged that she knows and understands the contents of this affidavit, that she has no objection to taking the prescribed oath and considers it binding on her conscience.

DEPONENT

COMMISSIONER OF OATHS

CERTIFICATE BY LEGAL REPRESENTATIVE

I, the undersigned, hereby certify that:

1. I am the legal representative of the First and Second Respondents in this matter;
2. I have satisfied myself as to the identity of the deponent;
3. The deponent has read and understood the contents of this affidavit;
4. The deponent has no objection to taking the prescribed oath;
5. The deponent considers the oath binding on her conscience;
6. The affidavit was sworn to before a duly appointed Commissioner of Oaths.

LEGAL REPRESENTATIVE

END OF RESPONDING AFFIDAVIT

ANNEXURES

Annexure JF1: Sage Account Screenshot (20 June 2025)

[Documentary proof of email control]

Annexure JF2: Sage Account Screenshot (25 August 2025)

[Confirmation of control structure]

Annexure JF3: Email Communication (29 August 2025)

[Attorney knowledge of criminal matters]

Annexure JF4: Shopify Plus Revenue Reports

[Proof of legitimate business operations]

Annexure JF5: Schedule of IT Expenses with Invoices

[Legitimate business expense documentation]

Annexure JF6: Evidence of Card Cancellations

[Proof of Applicant's business disruption]

Annexure JF7: Director Remuneration Resolutions

[Authorization for payments]

Annexure JF8: Attempts to Provide Information

[Communications showing cooperation attempts]

NOTICE
This responding affidavit is based on documentary evidence and contains no speculation. Each refutation is supported by specific documentary proof. The interdict obtained through perjury and fraud is void ab initio and must be set aside with appropriate sanctions against those who perpetrated fraud upon the Court.

Sent from Outlook for Android

From: Marduk Archo
Sent: Saturday, October 4, 2025 10:59:35 AM
To: dan@regima.com <dan@regima.com>
Subject: Draft 1

Sent from Outlook for Android